

24VECV05305 24VECV05305

County: los-angeles

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24VECV05305

ADRIANA MEJIA vs ANKE WEISBERG

August 11, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling - Motion for Leave to
File Cross-Complaint

I.

Background

On October 28, 2024, Plaintiff Adriana

Mejia ("Plaintiff") filed a complaint against Defendants Anke Weisberg ("Defendant") and Does 1 to 50 alleging three causes of action: (1) statutory strict liability; (2) common law strict liability; and (3) negligence.

On June 15, 2026, Defendant filed the instant motion for leave to file cross-complaint.

On July 29, 2026, Plaintiff filed her opposition.

On August 4, 2026, Defendant filed her reply.

II. Legal

Standard

Generally, a party must file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint. (Cal. Code of Civ. Proc. § 428.50(a).)

The court may grant leave to file a cross-complaint if the failure to plead a cause of action was the result of oversight, inadvertence, mistake, neglect, or other cause. (CCP § 426.50.) Where the proposed cross-complaint arises out of the same transaction as plaintiff's claim, the court must grant leave to file the cross-complaint as long as defendant is acting in good faith. (Ibid.) Judicial policy favors resolution of all disputed matters between the parties in the same lawsuit and discretion will usually be exercised liberally to permit amendment of the pleadings. (See *Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 929.)

A party may obtain leave of court to file a cross-complaint at any time during the course of a lawsuit, and leave may be granted in the interest of justice. (CCP §§ 426.50 and 428.50; see also *Sidney v. Superior Court* (1988) 198 Cal.App.3d 710, 718.) "To the extent practicable, all supporting memorandums and declarations must be attached to the notice of motion." (Cal. Rules of Court Rule 3.1113(j).)

III.

Analysis

Defendant seeks leave to file a cross-complaint against Elsy Mejia ("Elsy") for indemnity. (Motion at pp. 1-2.) Defendant argues that facts comprising grounds for a cross-complaint have ripened after Defendant conducted Plaintiff's deposition and learned of "new evidence to support [Elsy's] liability." (Ibid.) Specifically, "Plaintiff filed a complaint against Defendant alleging negligence, statutory strict liability, and common law strict liability. Plaintiff claims that Defendant is liable for the hand injuries she sustained after her unleashed dog initiated an attack on Defendant's dog. The incident was caused by Plaintiff's dog being allowed to run out of the house, through the open gate, and across the street without a leash or any supervision. Plaintiff testified that her mother, [Elsy], opened the main door ultimately allowing Plaintiff's dog to attack the Defendant's dog." (Id. at 3:7-14.)

In opposition, Plaintiff argues that Defendant delayed in bringing the instant motion based on deposition testimony obtained in April 2025. (Opposition at 2:3-5.) Plaintiff also argues the sufficiency of Defendant's proposed pleading, which, notably, is proper argument only upon demurrer or motion for judgment on the pleadings. (See *id.* at 4:4-11.) Plaintiff also argues that "Defendant's papers also minimize the proximity to trial . . . Measured from the hearing at which leave could first be granted, only approximately eleven weeks would remain before trial." (*Id.* at 8:13-17.) Trial in this action is set for October 26, 2026.

The Court agrees that permitting Defendant's cross-complaint, sixteen months after the deposition at issue and eleven weeks away from trial, would unduly prejudice Plaintiff and fail to serve the interests of justice. Furthermore, Defendant fails to substantiate the cause for such delay.

Based on the foregoing, Defendant's motion for leave to file a cross-complaint is DENIED.

Moving party to give notice.